

Sunil Kumar v. State of U.P. — bill-correctness dispute relegated to clause 6.5

High Court of Judicature at Allahabad · Division Bench · 26 November 2019 · WRIT - C No. - 37858 of 2019 · **Writ disposed of; relegated to clause 6.5 with 40-day stay**

HEADNOTE

A writ attacking an electricity recovery certificate and assessment/adjustment bill, where the grievance is correctness of the bill, will not be entertained when Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies a statutory remedy. The consumer was left to approach the appropriate authority within ten days, to be decided by a speaking order after hearing within thirty days, with coercive action stayed for forty days.

FACTUAL SUMMARY

Sunil Kumar challenged a recovery certificate dated 16 February 2019 for Rs 50,575 issued by respondent no. 5 and an assessment/adjustment bill dated 5 December 2018 for Rs 50,525 issued by respondent no. 6, and sought a mandamus restraining coercive action on those instruments. The High Court heard counsel for the petitioner and the Electricity Department. The petitioner's grievance was confined to the correctness of the bill raised against him.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correctness dispute; statutory remedy under clause 6.5

HOLDING

Where a consumer's writ is confined to the correctness of an electricity bill, Clause 6.5 of the U.P. Electricity Supply Code, 2005 is the available statutory remedy. The High Court will not entertain the petition on that footing. The consumer may approach the appropriate authority within ten days; that authority is to decide the application in accordance with law by a speaking order after hearing, within thirty days of receiving a certified copy, and coercive action is stayed for forty days. ¶ 3-7

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ attacking an electricity recovery certificate and assessment/adjustment bill, where the grievance is correctness of the bill, will not be entertained when Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies a statutory remedy.. ¶ 3-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ASSESSMENT/ADJUSTMENT BILL DATED 05.12.2018 AND THE RECOVERY CERTIFICATE DATED 16.02.2019

Merits of the billing and recovery challenge were left to the clause 6.5 authority. ¶ 3-6